

of Plaintiff's medical records, images and diagnostics, communications with his providers, and billing documents." See First Motion to Quash, p. 2. Plaintiff asserts that "[t]he only limitation was a date restriction beginning January 1, 2018, with no restriction as to body part, condition, or relevance to the subject incident." *Id.*

On their face, those statements fail to precisely address the requests at issue. The proffered copies of the subject subpoenas contain varying requests, many of which contain more limited language, including as to the express time limitations. See e.g. Deposition Subpoenas for Production of Business Records dated March 12, 2025 (containing various limitations such as "...from 01/01/2020 to the present..." and "from 01/01/2018 to the present including,..."). See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash). Of course, the review of such particulars is hampered by Plaintiff's failure to file Separate Statements in support of the Motions to Quash.

Furthermore, Plaintiff could have taken steps earlier to seek a Protective Order to obtain an adjudication on the scope of the subpoenas, but failed to do so.

No "misuse of records outside the scope of discovery" is shown by any declaration with a showing of specific factual circumstances surrounding an improper use of subpoenaed records by anyone, much less the Cafe's attorneys. See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash), ¶16.

Disposition

The Court finds and orders as follows:

1. The Motions to Quash are DENIED.
2. In the exercise of its discretion, the Court, *sua sponte*, orders the parties to meet and confer, in good faith, **within thirty (30) days** regarding the scope of the subpoenaed records at issue in the Motions to Quash to address the following:
 - a. Whether any agreements may be reached regarding the scope of the requests, including the return or destruction of documents that the parties agree are beyond the scope of permissible discovery in relation to the claims at issue; and
 - b. Whether the matter may be resolved, in whole or in part, by stipulating to a Protective Order to protect the confidentiality of the documents and to govern their use and dissemination.
3. In meeting and conferring as set forth above, the parties are admonished to be mindful that, generally, all medical and/or psychological records that are related to the claimed injuries put at issue by the Plaintiff are discoverable. See Evid. Code §§ 996 and 1016; see also Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 8:305 *et seq.* Moreover, while relevant medical and/or psychological records may include records beyond treatment for the subject injuries, the parties should consider other reasonable limitations on the scope of the discovery such as a reasonable timeframe or limitations related to areas of the body, etc.
4. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C24-02786
CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

***HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 8/15/25 & 8/18/25**

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

See LINE 11 above.

13. 9:00 AM CASE NUMBER: C25-01189

CASE NAME: OLIVIA ALVAREZ VS. CITY OF BRENTWOOD

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF BRENTWOOD

TENTATIVE RULING:

Before the Court is Defendant City of Brentwood (“Defendants” or “Brentwood”)’s demurrer. The demurrer relates to Plaintiff Olivia Alvarez (“Plaintiff” or “Alvarez”)’s First Amended Complaint for (1) Race Discrimination (Disparate Impact), (2) Race Discrimination (Disparate Treatment), (3) Age Discrimination (Disparate Impact), (4) Age Discrimination (Disparate Treatment), (5) Hostile Work Environment Harassment, (6) Retaliation, (7) Retaliation for Exercising Rights Under CFRA, and (8) Failure to Prevent Discrimination, Harassment, and Retaliation.

Defendant demurs to Plaintiff’s First Amended Complaint pursuant to California Code of Civil Procedure § 430.10 on the grounds that Plaintiff’s complaint relies on factual allegations that are barred by the statute of limitations, and that Plaintiff’s First, Third, Fourth, Fifth, Sixth, and Eighth claims fail to state sufficient facts to constitute causes of action.

Plaintiff opposes Defendant’s demurrer on the grounds that it improperly attempts to resolve factual disputes, draw inferences against Plaintiff, and imposes evidentiary burdens wholly inappropriate at the pleading stage.

For the following reasons, Defendants’ demurrer to Plaintiff’s First Amended Complaint is **sustained with leave to amend in part and overruled in part**.

Any amended complaint shall be filed and served on or before February 20, 2026.

Factual Allegations and Background

This suit arises out of an employment dispute.

Olivia Alvarez is a woman of Hispanic/Latin American descent. (First Amended Complaint (“FAC”) at 3:5-6.) She was employed by the City of Brentwood as a Parks and Recreation Department Supervisor from December of 2000 until April 28, 2023, when she was terminated. (*Id.* at 3:4-6, 19:25.) Alvarez was 50 years old at the time of her termination. (*Id.* at 25:15-16.) Between 2000 and 2019 Brentwood consistently gave Alvarez positive annual performance evaluations that complimented her on her ability to work with others and her professionalism. (*Id.* at 4:22-28.)